

24STCV29137 24STCV29137

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-06

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Case Number: 24STCV29137 Hearing Date: August 6, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 6, 2026 TRIAL DATE:

August 25, 2026

CASE: Nasdaq Technology AB v. Innovative

Partnerships Group, LLC, et al.

CASE NO.: 24STCV29137

MOTION

FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

MOVING PARTY: Defendant Innovative Partnerships Group, LLC, and Jeff

Marks

RESPONDING PARTY: Plaintiff Nasdaq Technology AB

CASE

HISTORY:

11/06/2024:

Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action for breach of contract and tortious interference with contract. Plaintiff alleges that Defendant Marks intentionally undercapitalized and misused a company he founded and controlled, which had contracted with Plaintiff for technology services, so as to avoid financial obligations under the contract.

Defendants move for summary judgment, or in the alternative, summary adjudication as to Plaintiff's complaint.

TENTATIVE RULING:

Defendants' motion for summary judgment, or in the alternative, summary adjudication is CONTINUED. The parties must either move to seal the documents they have lodged instead of filed, and move to seal any redacted papers; or alternatively, file all of the evidence and file unredacted papers. The Judicial Assistant will provide continued hearing date.

Defendants
to give notice.

DISCUSSION:

Unless confidentiality is required by law, court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550, subd. (c).) Consequently, pleadings, motions, evidence, and other papers may not be filed under seal merely by stipulation of the parties; rather, a prior court order is necessary. (Cal. Rules of Court, rule 2.551, subd. (a).) (Emphasis added). California Rules of Court, rule 2.551(b)(1) states, "[a] party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." CRC 2.550(d) makes clear that records cannot be sealed without appropriate findings.

Both parties have lodged with the Court certain evidence pursuant to a protective order. Further, the Motion for Summary Judgment, Opposition, and both parties' Separate Statements are also redacted. A record must not be filed under seal without a court order, even if based on the agreement of the parties. (See CRC 2.551(a); see also H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 888.) The Court is unable to locate any prior order authorizing all of the documents that are lodged, nor has there been any motion filed to seal all of the documents at issue.

Based on the foregoing, the Court will continue the motion for summary judgment in the interim to provide the parties an opportunity to properly file an application or motion for the requested portions of the documents to be sealed or alternatively for the parties to file the evidence that is lodged, and to file unredacted versions of their briefs and separate statements.

Defendants' motion for summary judgment, or in the alternative, summary adjudication is CONTINUED. The parties must either move to seal the documents they have lodged instead of filed, and move to seal any redacted papers; or alternatively, file all of the evidence and file unredacted papers. Judicial assistant will provided continued hearing date.

IT IS SO ORDERED.

Dated: August 6, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.